

13. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
*HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: SKINSPIRIT ESSENTIAL, LLC,
TENTATIVE RULING:

See Line 11, above.

14. 9:00 AM CASE NUMBER: C23-01698
CASE NAME: ZHI HUANG VS. HUTCHINSON MOTORS, INC.
*HEARING ON MOTION IN RE: TO APPROVE PAGA SETTLEMENT
FILED BY: HUANG, ZHI H
TENTATIVE RULING:

Summary

Plaintiff Zhi Huan' ("Plaintiff") Motion for Approval of the PAGA Settlement is **granted** as set forth below. **No appearance is required at the hearing on April 29, 2026.** This settlement is for the PAGA claim for civil penalties and is not a class settlement and does not release the individual wage claims of affected employees other than Plaintiff.

Background

Plaintiff filed this Motion for Approval PAGA Settlement. Plaintiff exhausted all administrative remedies required to bring the PAGA claims asserted in this action and is authorized to act as a private attorney general with respect to the PAGA claims being released under the terms of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Settlement Agreement"). The California Labor Workforce Development Agency ("LWDA") was provided with notice of the settlement and the motion for approval of the settlement via its online process and no objection has been received to the settlement or the motion from the LWDA.

Plaintiff Zhi H. Huang ("Plaintiff") seeks approval of the Stipulation of Settlement of PAGA Action and Release of PAGA Claims ("Agreement")¹, which if approved, would provide valuable monetary relief for approximately 55 "Aggrieved Employees," defined as all individuals who are or previously were employed by Defendant Hutchinson Motors, Inc. ("Defendant") in California at any time between May 3, 2022 to May 3, 2023 ("PAGA Period"). Agreement at §§ I(B); I(S); III(A)(3).

This is only a settlement of the PAGA claim for civil penalties and is **not** a class settlement and **does not** release the individual wage claims, if any, of the affected employees other than Plaintiff herself. Cal. Lab. Code § 2699(g)(1); *Iskanian v. CLS Transportation* (2014); 59 Cal. 4th 348, 381 ZB, N.A. v. *Superior Court*, (2019) 8 Cal. 5th 175, 182 (unpaid wages are not recoverable under PAGA).

The terms of this settlement agreement are as follows:

1. The PAGA Settlement provides for a Gross Settlement Amount in the total sum of \$100,000.00, which includes: i) the Net Settlement Amount; ii) Plaintiff's Counsel Award in the amount of \$35,826.28, comprised of attorneys' fees in the amount of \$33,333.33 and reimbursed litigation expenses in the amount of \$2,492.95; and iii) Settlement Administration